



CERTAMARIS LEGAL DOCUMENT SYSTEM

Vendor Data Processing Addendum

Processor obligations imposed on vendors processing personal data for CertaMaris.

DOCUMENT ID

CM-LEGAL-24

VERSION

1.0

ISSUE DATE

23 August 2026

STATUS

CONTROLLED EXECUTION TEMPLATE

DOCUMENT OWNER

Privacy / Legal / Security

APPROVER

Authorized CertaMaris Signatory

DOCUMENT PURPOSE / KEY MESSAGE

Provides downstream data-processing terms for vendors acting as processors or subprocessors for CertaMaris, including instructions, security, incidents, subprocessors, transfers and deletion.

EFFECTIVE

Upon authorized execution

CLASSIFICATION

CONFIDENTIAL - LEGAL

LEGAL STATUS

Purpose, Scope and Controlled Use

Processor obligations imposed on vendors processing personal data for CertaMaris.

This document has been populated with CertaMaris standing business, platform, security, privacy, AI and commercial positions. It remains a reusable execution template because the actual counterparty, transaction, fees, dates, signatures, jurisdictional corporate particulars or other deal-specific facts vary by engagement. Those fields must be completed before execution.

CertaMaris standing facts used by this document

- Service model: negotiated business-to-business contracts; no consumer or self-service signup model is assumed by these documents
- Platform: browser-based B2B maritime cybersecurity, compliance, assurance, risk-intelligence and operational-resilience SaaS platform
- Customer owns Customer Content; CertaMaris receives only rights needed to provide, secure and support the Services.
- High-sensitivity cyber posture and vessel/facility technical content is treated as Customer Confidential Information.
- Security reporting: security@certamaris.com
- Procurement/legal-document requests: <https://certamaris.com/contact?intent=procurement>

Transaction-specific fields intentionally left for execution include the actual CertaMaris legal entity and formation jurisdiction (if not already established in the Order Form), counterparty identity, addresses, signatory names/titles, signature dates, commercial scope/fees, and any negotiated governing-law or venue choice.

TERMS / NOTICE

Operative Provisions

CertaMaris-specific standing content for this controlled release.

1. Roles and Instructions

For Customer Personal Data, Customer is controller and CertaMaris is processor, unless Customer itself acts as processor for another controller, in which case CertaMaris acts as subprocessor. CertaMaris may independently process limited account, security, billing and business-contact data as controller for service administration, security, legal compliance and B2B relationship management.

2. Purpose Limitation

Prohibit selling, unrelated use and impermissible combination. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

3. Confidentiality

Each party will protect the other's Confidential Information using at least reasonable care and will use it only to perform or exercise rights under the Agreement. Customer vulnerability findings, network-zone maps, remote-access pathways, technical inventories, cyber plans and actual security posture are Customer Confidential Information. CertaMaris methodology, non-public product architecture, security materials and commercial terms are CertaMaris Confidential Information. Standard exclusions apply for information lawfully public, previously known without duty, independently developed, or rightfully received from a third party. Confidentiality duties continue for five years after disclosure or termination; trade secrets remain protected for so long as they qualify as trade secrets under applicable law. Required legal disclosures are permitted with notice where lawful.

4. Security Measures

CertaMaris will maintain reasonable safeguards appropriate to the nature and sensitivity of Customer Content. The current baseline includes tenant isolation, role/object-scoped access, authenticated access, TLS, provider-managed encryption at rest, controlled privileged access, audit/change history, operational logging, separated environments, secure development practices, vulnerability/dependency tooling, backups and incident response. MFA and SSO/SCIM are not represented as universally current. Formal SOC 2 or ISO 27001 certification is not claimed. Personal-data processing on Customer's behalf is governed by the DPA.

5. Incident Notice

The applicable transaction documents set prompt vendor-to-CertaMaris incident notification. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

TERMS / NOTICE

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6. Data Subject / Regulatory Assistance

Taking into account the nature of processing, CertaMaris will provide reasonable assistance with valid data-subject requests, data-protection impact assessments, regulatory inquiries and legally required consultations relating to Customer Personal Data. If CertaMaris receives a request concerning Customer Personal Data, it will generally redirect or forward it to Customer and will not substantively respond except on Customer's documented instruction or as required by law.

7. Subprocessors

Customer generally authorizes the subprocessors listed in CertaMaris's controlled Subprocessor List. CertaMaris will impose written data-protection obligations appropriate to each provider's processing and remains responsible to the extent required by applicable law. CertaMaris will provide 30 days advance notice when reasonably practicable and Customer has 15 days after notice, based on reasonable data-protection grounds to raise a reasonable data-protection objection.

8. International Transfers

CertaMaris and its providers may process data in the United States and other locations needed to provide the Services. Where a restricted transfer requires safeguards, the parties will use an available lawful mechanism, including the European Commission Standard Contractual Clauses (Module 2 for controller-to-processor and Module 3 where the customer is itself a processor, as applicable), the UK Addendum or other valid UK mechanism, and Swiss adaptations where required. Transfer annex particulars remain customer- and transfer-specific and are completed when the relevant mechanism applies.

9. Return / Deletion

Require deletion/return at termination and certification. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

10. Audit / Evidence

Require security/privacy evidence and risk-based audit rights. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

11. Government Requests

Unless prohibited by law, CertaMaris will notify Customer of a legally binding government demand for Customer Personal Data before disclosure, challenge overbroad or unlawful demands where reasonably appropriate, and disclose only data legally required. CertaMaris may publish or provide additional transparency information as its program matures.

TERMS / NOTICE

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12. Precedence and Survival

Ensure DPA controls privacy conflicts and survives as needed. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

TRANSFER SCHEDULE

International Transfer Framework

Standing mechanism; transaction-specific exporter/importer particulars are completed only when required.

1. EU SCC role selection

Module 2 when Customer is controller and CertaMaris is processor; Module 3 when Customer is processor and CertaMaris is subprocessor.

2. UK

Use the UK Addendum to the EU SCCs or another then-valid UK transfer mechanism where required.

3. Switzerland

Use required Swiss FDPA adaptations to the chosen mechanism where applicable.

4. Supplementary measures

Encryption, access minimization, tenant isolation, provider contractual commitments, region selection, and data-classification restrictions including no external AI for RESTRICTED data.

5. Transfer-risk assessment

Maintained as a controlled record for the actual transfer and reviewed when providers, jurisdictions or material technical measures change.

DOCUMENT CONTROL

Execution, Publication and Revision Record

Reusable records remain controlled; customer/counterparty signatures are completed only for the actual transaction.

CONTROL FIELD	VALUE
Version	1.0
Issue date	23 August 2026
Status	CONTROLLED EXECUTION TEMPLATE
Effective	Upon authorized execution
Document owner	Privacy / Legal / Security
Approver / execution authority	Authorized CertaMaris Signatory
Review trigger	Material legal, provider, privacy, security, jurisdiction, service-model or commercial change

Execution / approval record

CERTAMARIS AUTHORIZED SIGNATORY / APPROVER

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____

COUNTERPARTY / SECOND APPROVER AS APPLICABLE

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____